PREPARED BY AND WHEN RECORDED
RETURN TO:

Mayer Brown LLP
71 S. Wacker Drive
Chicago, Illinois 60606
Attention: John Huff, Esq.

2016 00031450
Bk: 55976 Pg: 323 Page: 1 of 9
Recorded: 04/14/2016 10:09 AM
ATTEST: Thomas M Ryan, Temp Register
Suffolk County Registry of Deeds

ASSIGNMENT AND ASSUMPTION OF DECLARANT'S RIGHTS

THIS ASSIGNMENT AND ASSUMPTION OF DECLARANT'S RIGHTS (this "**Assignment**") is made as of APRIL 11, 2016 (the "**Effective Date**"), by and between SCD L1 SEAPORT SQUARE LLC, a Delaware limited liability company ("**Assignor**"), and 101 SEAPORT BLVD LLC, a Delaware limited liability company ("**Assignee**").

WITNESSETH:

WHEREAS, Assignor is the 'Declarant' under that certain Master Deed of 101 Seaport Boulevard Condominium recorded on November 4, 2015 with the Suffolk County Registry of Deeds (the "**Registry**") in Book 55280, Page 1, as amended of record (the "**Master Deed**"), which Master Deed established the 101 Seaport Boulevard Condominium (the "**Condominium**") pursuant to Chapter 183A of the Massachusetts General Laws. All capitalized terms used, but not defined herein, shall have the meaning ascribed to such term in the Master Deed.

WHEREAS, by Unit Deed of even date herewith recorded prior hereto with the Registry, Assignee acquired from Assignor the Commercial/Garage Unit of the Condominium.

WHEREAS, Assignor desires to assign, and Assignee desires to assume, all of Assignor's right, title and interest as Declarant under the Master Deed, all as more fully set forth below.

NOW, THEREFORE, in consideration of the premises and the mutual covenants herein contained, the parties hereto hereby agree as follows:

1. Assignment and Assumption. Assignor hereby assigns, sets over and transfers to Assignee all of Assignor's right, title and interest in, to and under the Master Deed (collectively, the "**Declarant's Rights**"). Assignee hereby accepts the foregoing assignment of the Declarant's Rights and agrees to assume all duties, obligations, undertakings and liabilities of Assignor under and as to the Declaration arising and accruing from and after the Effective Date. As of the Effective Date, Assignor shall have no further rights or responsibilities, as Declarant, in, to, under or with respect to, the Declarant's Rights and all duties, obligations, undertakings and liabilities under the Declaration.

Please Return To: SSCali.
First American Title Insurance Company
National Commercial Services
800 Boylston Street, Suite 2820
Boston, MA 02199 76807O

2. Representations. Assignor hereby represents and warrants to and for the benefit of Assignee that Assignor has the right and authority to assign all of the Declarant's Rights in and under the Declaration and Assignor has not assigned, sold, transferred, pledged, hypothecated or otherwise granted any interest in, the Declarant's Rights to any other person or entity

3. No Further Representations. Except as otherwise expressly provided herein, this Assignment is made without representation or warranty by Assignor of any kind, whether express or implied. Assignee accepts such assignment subject to the terms hereof.

4. Miscellaneous. This Assignment and the obligations of the parties hereunder shall be binding upon and inure to the benefit of the parties hereto, their respective legal representatives, successors and assigns, shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, and may not be modified or amended in any manner other than by a written agreement signed by the party to be charged therewith.

5. Severability. If any term or provision of this Assignment or the application thereof to any persons or circumstances shall, to any extent, be invalid or unenforceable, the remainder of this Assignment or the application of such term or provision to persons or circumstances other than those as to which it is held invalid or unenforceable shall not be affected thereby, and each term and provision of this Assignment shall be valid and enforced to the fullest extent permitted by law.

6. Counterparts. This Assignment may be executed in counterparts, each of which shall be an original and all of which counterparts taken together shall constitute one and the same agreement.

[Remainder of page intentionally blank]

IN WITNESS WHEREOF, the undersigned have executed as a sealed instrument this Assignment of Declarant's Rights to be effective as of the date first set forth hereinabove.

ASSIGNOR:
SCD L1 SEAPORT SQUARE LLC,
a Delaware limited liability company

By: _____
Name: Shawn Hurley
Title: Manager

By: _____
Name: Charles Leatherbee
Title: Manager

COMMONWEALTH OF MASSACHUSETTS

County of Suffolk, ss.

On this 8th day of April, 2016, before me, the undersigned notary public personally appeared SHAWN HURLEY, proved to me through satisfactory identification, which were [driver's license] or [based on the undersigned's personal knowledge], to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose as MANAGER of SCD L1 Seaport Square LLC.

SOPHIE ELSA NITISHIN
Notary Public
COMMONWEALTH OF MASSACHUSETTS
My Commission Expires
March 18, 2022

Sophie Elsa Nitishin
(Official Signature and Seal of Notary)
My Commission Expires:
MARCH 18, 2022

COMMONWEALTH OF MASSACHUSETTS

County of Suffolk, ss.

On this 8th day of April, 2016, before me, the undersigned notary public personally appeared CHARLES LEATHERBEE, proved to me through satisfactory identification, which were [driver's license] or [based on the undersigned's personal knowledge], to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose as MANAGER of SCD L1 Seaport Square LLC.

Sophie Elsa Nitishin
(Official Signature and Seal of Notary)
My Commission Expires:
MARCH 18, 2022.

SOPHIE ELSA NITISHIN
Notary Public
COMMONWEALTH OF MASSACHUSETTS
My Commission Expires
March 18, 2022

IN WITNESS WHEREOF, the undersigned have executed as a sealed instrument this Assignment of Declarant's Rights to be effective as of the date first set forth hereinabove.

ASSIGNOR:
SCD L1 SEAPORT SQUARE LLC,
a Delaware limited liability company

By: _____
Name:
Title:

By: _____
Name:
Title:

COMMONWEALTH OF MASSACHUSETTS

County of Suffolk, ss.

On this ____ day of _____, 2016, before me, the undersigned notary public personally appeared _____, proved to me through satisfactory identification, which were [driver's license] or [based on the undersigned's personal knowledge], to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose as _____ of SCD L1 Seaport Square LLC.

_____
(Official Signature and Seal of Notary)
My Commission Expires:

COMMONWEALTH OF MASSACHUSETTS

County of Suffolk, ss.

On this ____ day of _____, 2016, before me, the undersigned notary public personally appeared _____, proved to me through satisfactory identification, which were [driver's license] or [based on the undersigned's personal knowledge], to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose as _____ of SCD L1 Seaport Square LLC.

_____
(Official Signature and Seal of Notary)
My Commission Expires:

ASSIGNEE:

101 SEAPORT BLVD LLC
a Delaware limited liability company

By: **UNION INVESTMENT REAL ESTATE GMBH,**
a German limited liability company, acting in its own name and for the account of the open ended real estate fund UniImmo: Europa, its sole member

By: _____
Name: Dr. Reinhard Kutscher
Title: managing director

and

By: _____
Name: Dr. Frank Billand
Title: managing director

Roll of Documents No. 956/2016 HE

Hereby I,

Dr. Rolf-Hermann Henniges, Notary Public

practising Alstertor 14, D-20095 Hamburg,

certify, that the above are the true signatures, subscribed in my presence, of

1. Dr. Reinhard Kutscher, managing director,
   date of birth: 1st day of November, 1954,
   address: Valentinskamp 70 / EMPORIO, D-20355 Hamburg,
   personally know to me, and

2. Dr. Frank Billand, managing director,
   date of birth: 4th day of February, 1954,
   address: Valentinskamp 70 / EMPORIO, D-20355 Hamburg,
   personally known to me,

   acting on behalf of the

   Union Investment Real Estate GmbH with the registered seat in Hamburg,
   address: Valentinskamp 70 / EMPORIO, D-20355 Hamburg,
   registered in the Commercial Register of the Local Court in Hamburg (HRB 110793).

I do hereby further certify (§ 21 BNotO) on the basis of today's inspection of the Commercial Register of the Local Court in Hamburg (HRB 110793), that Dr. Reinhard Kutscher and Dr. Frank Billand are managing directors and that they are as such entitled to represent the foregoing company together. I do further certify that the foregoing company is a legal entity duly organized and existing according to the Laws of the Federal Republic of Germany.

My Commission expires: lifelong.

Hamburg, the 7th day of April, 2016

DR. ROLF-HERMANN HENNIGES NOTARIATSSIEGEL HAMBURG

Dr. Rolf-Hermann Henniges, Notary Public

Apostille

(Convention de La Haye du 5 octobre 1961)

1. Land: Bundesrepublik Deutschland

   Diese öffentliche Urkunde

2. ist unterschrieben von **Dr. Rolf-Hermann Henniges**

3. in der Eigenschaft als **Notar**

4. sie ist versehen mit dem Siegel/Stempel des

   Notars Dr. Rolf-Hermann Henniges

   Bestätigt

5. in Hamburg 6. am 8. April 2016

7. durch die Präsidentin des Landgerichts

8. unter **Nr. 9101 E/I 1342/2016**

9. Siegel/Stempel

Landgericht Hamburg
128
Hamburg

10. Unterschrift:
In Vertretung

Lübbert
Vizepräsident des Landgerichts